



Instruction Kit for eForm IEPF-5

(Application to the Authority for claiming unpaid amounts and shares out of Investor Education and Protection Fund)

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About this Document

The Instruction Kit has been prepared to help you file eForms with ease. This documents provides references to law(s) governing the eForms, instructions to fill the eForm at field level and common instructions to fill all eForms. The document also includes important points to be noted for successful submission.

User is advised to refer instruction kit specifically prepared for each eForm.

User is advised to file one form for one FY against one Aadhar Number and one Company. User can enter more than one claims in single form (Number of claims to be entered in field 4)

Part I – Law(s) Governing the eForm

Section and Rules

eForm IEPF-5 is required to be filed pursuant to sub-section (3) of section 125 of the Companies Act, 2013 and rule 7(1) of the Investor Education and Protection Fund Authority (Accounting, Audit, Transfer and Refund) Rules, 2016

Rule 7(1):

Any person, whose shares, unclaimed dividend, matured deposits, matured debentures, application money due for refund, or interest thereon, sale proceeds of fractional shares, redemption proceeds of preference shares, etc. has been transferred to the Fund, may claim the shares under provision to sub-section (6) of section 124 or apply for refund, under clause (a) of sub-section (3) of section 125 or under proviso to sub-section (3) of section, the case may be, to the Authority by making an application in Form IEPF 5 online available on website www.iepf.gov.in along with fee, as decided by the Authority from time to time in consultation with the Central Government, under his own signature.

Purpose of the form

The person in respect of whom any amount is transferred to the IEPF, can make an application by filing Form IEPF-5 with the IEPF authority set up by MCA that shall further process the application. IEPF authority may seek necessary clarifications from the concerned company/bank.



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Reference

New form implemented as per Investor Education and Protection Fund Authority (Accounting, Audit, Transfer and Refund) Rules, 2016]

Part II – Instructions to fill the eForm

Specific Instructions to fill the eForm IEPF-1 at Field Level

Instructions to fill the eForm are tabulated below at field level. Only important fields that require detailed instructions to be filled in eForm are explained. Self-explanatory fields are not discussed.

Field No.	Field Name	Instructions
1		Only one Form to be filed for one FY against one Aadhar Number and one Company. User can enter more than one claims in single form (Number of claims to be entered in field 4)
1	Particulars of the Applicant	Enter Name, Address and contact details of the Applicant.
2	Particulars of the Company from which the amount is due	Enter the Valid CIN of the company. You may find CIN by entering existing registration number or name of the Company in the 'Find CIN' service under the menu MCA Services on the MCA website. (www.mca.gov.in) Click the Pre-fill button. Upon clicking the button, system shall automatically display the name, registered office address and email id of the company. In case there is any change in the email ID, you can enter the new valid email ID which would be updated in MCA records upon processing of this eForm.
3	Details of shares claimed	Enter the details of shares including folio id, etc.
4	Details of Amount Claimed	Enter the details of amount claimed. Enter the number of claims made.

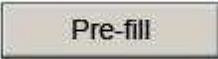


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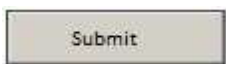
		The number of rows under 'Year wise details of securities/ deposits for which the amount is claimed' shall be generated based on the number of claims entered by the applicant.
5	Aadhar Number or Passport/OCI/PIO Card No. (in case of NRI/foreigners)	Enter aadhaar number of applicant in case of Indian National. For foreign nationals, enter OCI/PIO Card no.
	Number of Claims	User can enter more than one claims in single form.
6	Details of bank account (Aadhar linked, in case applicant is not NRI/foreigner) in which refund of claim to be made	Enter bank account number, bank name, Bank branch, Type of account and IFSC code. In case of Indian Nationals, Bank Account Number must be Aadhaar linked.
7	Demat Account Number	Enter Demat Account Number
	Declaration	Click on check box given in declaration, after carefully reading all conditions

Common Instructions to fill eForm

BUTTONS	PARTICULARS
Pre-Fill 	The Pre-fill button can appear more than once in an eForm. The button appears next to a field that can be automatically filled using the MCA database. Click this button to populate the field. Note: You are required to be connected to the Internet to use the Prefill Functionality.
Check Form 	1. Click the Check Form button after, filling the eForm. System performs form level validation like checking if all mandatory fields are filled. System displays the errors and provides you an

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	opportunity to correct errors. 2. Correct the highlighted errors. 3. Click the Check Form button again and. system will perform form level validation once again. On successful validations, a message is displayed “Form level pre scrutiny is successful”. Note: The Check Form functionality does not require Internet connectivity.
Modify 	The Modify button is enabled, after you have checked the eForm using the Check Form button. To make changes to the filled and checked form: 1. Click the Modify button. 2. Make the changes to the filled eForm. 3. Click the Check Form button to check the eForm again.
Pre scrutiny 	After checking the eForm, click the Prescrutiny button. System performs some checks and displays errors, if any. 2. Correct the errors. 3. Click the Prescrutiny button again. If there are no errors, a message is displayed “No errors found.” The Prescrutiny functionality requires Internet Connectivity.
Submit 	This button is disabled at present.

Part III- Important points for successful submission

After pre scrutiny is done the user is required to upload the form using steps as given below:

1. Go to IEPF Website (www.iepf.gov.in) and use the option form upload. You will be redirected to MCA21 for form Upload.
2. Login using your ID and Password (if existing or else register yourself by clicking on register and entering the required details).



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3. After login, click on normal upload.
4. Click on Browse and attach the form. Click on Submit.
5. SRN will be generated and you will ask for payment option (Pay Now or Pay later).
6. Though Fee will be zero, but click on Pay now option only to generate the acknowledgement.
7. After clicking on Pay Now, you have to click on Finish when zero fee page will be shown. Acknowledgement will be generated.

Part IV-Process to be followed after filling the form

Steps to be followed after Form upload:

User has to send the attachments prescribed below to Nodal Officer (IEPF) of the company at its registered office in an envelope marked “claim for refund from IEPF Authority” for initiating the verification for claim

1. Print out of duly filled claim form with claimant signature.
2. Copy of acknowledgement
3. Indemnity Bond (original) with claimant signature (As per format given in Annexure II) to be executed :
 - a. On a non-judicial Stamp Paper of the value as prescribed under the Stamp Act if the amount of the claim is Rs.10, 000 or more.
 - b. On a plain paper if the amount claimed does not exceed Rs.10,000.
 - c. In case of refund of shares, on a non-judicial Stamp Paper of the value as prescribed under the Stamp Act.
 - d. Advance Stamped receipt (original) with signature of claimant and two witnesses. (Format is given at Annexure I)
 - e. In case of refund of matured deposit or debenture, original certificate thereto
 - f. Copy of Aadhaar Card (For Indian Nationals)
 - g. Proof of entitlement (certificate of share/Interest warrant Application No. etc.)
 - h. Cancelled Cheque leaf
 - i. Copy of Passport, OCI and PIO card in case of foreigners and NRI
 - j. Other optional document,(if any)



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Annexure I

Advance Receipt

Received from the Investor Education and Protection Fund Authority the sum of Rs..... being the amount payable to me from the Investor Education and Protection Fund as (Dividend on Equity / Preference shares / matured deposits / matured debentures / application money due for refund / interest accrued on...../Dividend credited to IEPF under Companies Act, 1956 or Companies Act, 2013/ Dividend credited to General Revenue Account under Companies Act, 1956 / others, specify.....) which was originally due from M/s.....

Signature of claimant

Stamp

Signature of witness:

1. Signature with date

Name

Address

2. Signature with date

Name

Address



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Annexure II

Indemnity bond

To
The Investor Education and Protection Fund Authority
.....

In consideration of the payment of Rs. being the amount due to me as (Dividend on Equity / Preference shares / matured deposits / matured debentures / application money due for refund / interest accrued on...../Dividend credited to IEPF under Companies Act, 1956 or Companies Act, 2013/ Dividend credited to General Revenue Account under Companies Act, 1956 / others, specify.....) for the Financial Year..... from M/s out of the Investor Education and Protection Fund by the Authority, Ison /daughter /wife of do hereby agree and undertake to indemnify the Investor Education and Protection Fund Authority to the extent of any claim not exceeding the amount hereinbefore mentioned which may be preferred against the Investor Education and Protection Fund Authority, and which it has to lawfully discharge.

Signature

Date:

Place:

Witnesses:

1. Signature with date

Name

Address

2. Signature with date

Name

Address



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